

**BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS and
THE COLORADO ADDICTION COUNSELOR PROGRAM**

STATE OF COLORADO

Case Nos.: 2008-001243 and 2008-001174

STIPULATION AND FINAL AGENCY ORDER

**IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE
TO PRACTICE LICENSED PROFESSIONAL COUNSELING AND THE
CERTIFICATION TO PRACTICE ADDICTION COUNSELING IN THE STATE OF
COLORADO OF RANDI G. BAKER, LPC, LICENSE NO. 2175 AND CAC III,
CERTIFICATE NO. 3273,**

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners (the "Board"), the Director for the Colorado Addiction Counselor Program ("Director") and Randi G. Baker, LPC, CAC III ("Respondent") as follows:

1. The Board and Director have jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed as a Professional Counselor and certified to practice as an Addiction Counselor in the State of Colorado at all times relevant herein.
3. This Order is a full and final resolution of Case Numbers 2008-001243 and 2008-001174. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board and/or Director or Respondent, as of the effective date of this Order.
4. Respondent admits the following:

Respondent inadvertently used the letterhead of his former employer "AMEND," in reporting to his referring agencies about client progress for the month of June 2007, which resulted in a breach of confidentiality.
5. By virtue of the facts admitted in paragraph 4 above, the Board and Director find that Respondent violated §§ 12-43-222(1)(g) and 12-43-218(1) C.R.S.

The statutory authority of the Board is as follows:

12-43-222. Prohibited activities – related provisions. (1) A person licensed, registered, or regulated under part 3, 4, 5, 6, or 7 of this article is in violation of this article if such person:

(g) ... Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which such person practices. A certified copy of a malpractice judgment of a court of competent jurisdiction shall be conclusive evidence of such act or omission, but evidence of such act or omission shall not be limited to a malpractice judgment; and,

12-43-218. Disclosure of confidential communications. (1) A licensee, school psychologist, registrant, or unlicensed psychotherapist shall not disclose, without the consent of the client, any confidential communications made by the client, or advice given thereon, in the course of professional employment; nor shall a licensee's, school psychologist's, registrant's, or unlicensed psychotherapist's employee or associate, whether clerical or professional, disclose any knowledge of said communications acquired in such capacity; nor shall any person who has participated in any therapy conducted under the supervision of a licensee, school psychologist, registrant, or unlicensed psychotherapist, including, but not limited to, group therapy sessions, disclose any knowledge gained during the course of such therapy without the consent of the person to whom the knowledge relates. ...

6. By virtue of the admissions in paragraph 4, Respondent is subject to the following disciplinary sanctions that the Board and Director believe are necessary to protect the public health, safety, and welfare.

PROBATION

7. Respondent's license to practice professional counseling and his certificate to practice addiction counseling in the State of Colorado are hereby placed on probation for one (1) year commencing from the date this Order is fully executed or the date Respondent's practice monitor is approved, whichever date is later. During the probationary period, Respondent shall be bound by the terms and restrictions set forth in this Order.

8. The period of probation is tolled during any time that Respondent is not practicing in this state, and such period of probation shall resume at such time as Respondent resumes practicing in the State of Colorado in accordance with this Order.

9. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing as a professional counselor and/or addiction counselor in Colorado, is being monitored by a practice monitor, and is in full compliance with all terms of this Order.

10. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of probation. Request for termination of probation must be made in writing to the Board and Director, and Respondent is responsible for establishing, to the satisfaction of the Board and Director, that he has satisfied all terms and conditions of probation.

PRACTICE MONITOR

11. During the term of probation, Respondent's practice will be monitored by a practice monitor. Within 30 days of the effective date of this Order, Respondent shall nominate, in writing, three proposed practice monitors for the Board's and Director's approval. Respondent shall include a program-approved practice monitor application from each potential monitor, with attached vita/resume. The practice monitor shall meet the following criteria:

- a. The practice monitor shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado.
- b. It is recommended that the practice monitor have a minimum of five years experience and has not been subject to professional discipline.
- c. The practice monitor shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

12. Respondent must have a practice monitor approved by the Board and Director within two months after this Order is fully executed. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of his practice until a practice monitor is approved.

13. After the Board's and Director's written approval of the practice monitor, Respondent and the practice monitor shall enter into a written contract for monitoring. The practice monitor shall provide a copy of the written contract to the Board and Director as a part of his/her first report to the Board and Director. The contract must contain a provision stating that the practice monitor has received a copy of this Order, the complaint and responsive documents, any investigative report, and any prior practice evaluation; has read these documents; and understands the duties and responsibilities s/he is undertaking as Respondent's practice monitor. The practice monitor shall ensure that a written notification is provided to each of Respondent's clients, informing the clients of the name, address, and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.

14. The practice monitor shall conduct a practice evaluation during the first month of practice monitoring. The practice evaluation shall examine all aspects of Respondent's practice or proposed practice and his qualifications and ability to practice in accordance with generally accepted standards of practice and with skill and safety for clients, and determine whether he has the necessary qualifications, current ability, and competence to practice. The first practice monitoring report shall include the findings of the practice evaluation.

15. Should the Board and/or Director determine from the practice monitor's evaluation that Respondent cannot practice any part of his practice with skill and safety for clients in accordance with generally accepted standards of practice or does not have the appropriate qualifications, ability or competence for practice, Respondent shall immediately cease any part of the practice that the Board and/or Director determines, based on the evaluation, he is not qualified, competent, or safe to conduct. Based on the Board's and/or Director's findings and the evaluation, the Board and/or Director will determine necessary actions that Respondent must take and

conditions Respondent must meet so that Respondent can practice with skill and safety for clients in accordance with generally accepted standards of practice in any areas the Board and/or Director finds Respondent is not qualified, competent, and safe to practice. Once Respondent satisfies the Board and Director that he is qualified, competent, and safe to fully practice, Respondent may resume full practice.

16. The practice monitoring shall consist of individual, in-person (face-to-face) sessions that occur once a week for at least one hour, or such longer time as the practice monitor deems necessary. During the practice monitoring sessions, Respondent and his practice monitor must review and discuss each of Respondent's active cases at least once every month in order to allow the practice monitor to be able to determine whether Respondent is practicing licensed professional counseling and/or addiction counseling in accordance with generally accepted standards of practice and with skill and safety for his clients.

17. The practice monitor shall submit written reports to the Board and Director on the fifth day of the month following the first full month of practice monitoring. All subsequent reports shall be submitted on the fifth day of each month for the first 12 reports. After the submission of the first 12 reports, unless otherwise ordered by the Board/Director, the practice monitor shall submit his/her report by the fifth day of every third month (i.e. on a quarterly basis) until the practice monitoring is completed.

18. If at any time the Board and/or Director has questions or concerns regarding the monitoring, the practice monitor agrees to attend any Board and/or Director meeting necessary to address the Board's and/or Director's concerns. The Board and/or Director will give the practice monitor thirty (30) days notice prior to requiring the practice monitor's attendance at the Board and/or Director meeting.

19. If at any time the practice monitor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to his clients, or has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Board and Director, in writing, and include the basis for this conclusion. A copy will be sent to Respondent. Upon submission of such a report, Respondent shall immediately cease the practice of licensed professional counseling and/or addiction counseling.

20. Respondent shall make every effort to ensure that all reports by the practice monitor are complete and timely submitted to the Board and Director. If, in the Board's and/or Director's judgment, the practice monitor fails to perform the function specified by this Order, the Board and/or Director may require that a new practice monitor assume the responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Respondent shall submit, in writing, a new proposed practice monitor to the Board and Director within thirty (30) days.

21. Respondent or the practice monitor may terminate the monitoring relationship upon written notice to the other and to the Board and Director not less than sixty (60) days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Board and Director-approved practice monitor, who

shall conduct her/his monitoring and report to the Board and Director in accordance with this Order.

TERMS AND CONDITIONS

22. Respondent will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that he does not engage in any activities that are prohibited and that he practices in accordance with the generally accepted standards of practice.

23. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing professional counseling and/or addiction counseling, unless such supervision or consultation is monitored in accordance with this Order.

24. All expenses incurred or associated with the practice evaluation, therapy evaluation, therapy, practice monitoring, education, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.

25. During the pendency of this Order, Respondent agrees that he will provide permission to and allow his practice monitor to provide records and information obtained in the normal course of practice monitoring to the Board and Director if the practice monitor determines that Respondent is not practicing professional counseling and/or addiction counseling in accordance with generally accepted standards of practice or has a condition that renders him unable to treat clients with skill and safety or that may endanger the health or safety of persons under his care. As part of this Order, Respondent explicitly waives his right to maintain confidentiality of records or information provided to the practice monitor in the normal course of practice monitoring if the practice monitor determines that he is not practicing professional licensing and/or addiction counseling in accordance with generally accepted standards of practice or has a condition that renders him unable to treat clients with skill and safety or that may endanger the health or safety of persons under his care.

26. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Board and Director of the change of address within thirty (30) days of the effective date of such change.

27. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to § 12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

28. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

29. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order and Director Order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

30. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and Director Order and may be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

31. This Order constitutes the entire agreement between Respondent and the Board and Director. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

32. This Order shall become effective when accepted and signed on behalf of the Board and Director.

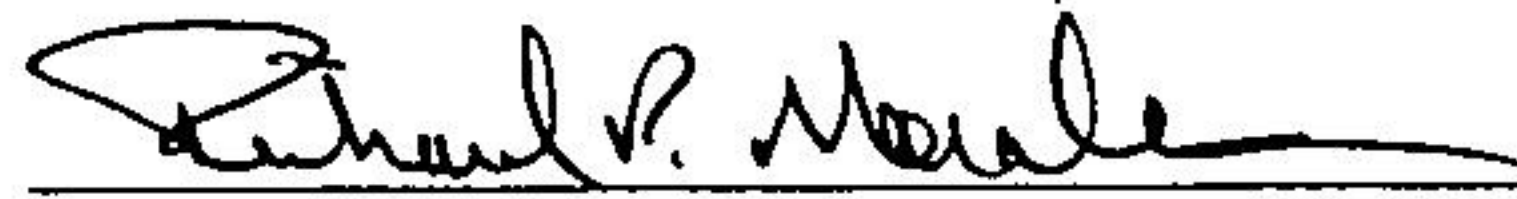
33. This Order shall be a public record in the custody of the Board and Director.

RESPONDENT



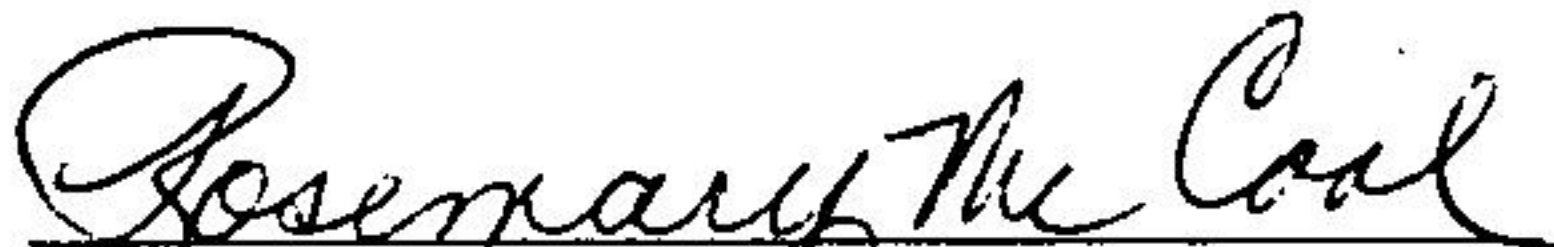
Randi G. Baker, LPC #2175,
CAC III #3273

COLORADO STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS
AND



Richard P. Morales, Program Director
1560 Broadway, Suite 1310
Denver, CO 80202

THE COLORADO ADDICTION COUNSELOR
PROGRAM



Rosemary McCool, Director

Effective Date: This 2nd day of

April, 2008.